

25SMCV03136 25SMCV03136

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C08%2F18%2F2026

Source SHA-256: 3585f03d539d04aeea339813c8711b7c4056f60c1d8d41b9042111c451579bbd

Case Number: 25SMCV03136 Hearing Date: August 18, 2026 Dept: P

Tentative Ruling

Diaz v. General Motors LLC, et al., Case No. 25SMCV03136

Hearing date August 18, 2026

Plaintiff Miguel Diaz's Motion for Attorney's Fees and Costs

Background

On June 18, 2025, Plaintiff Miguel Diaz ("Plaintiff") filed the operative Complaint against Defendants General Motors LLC ("GM"); Culver City Chevrolet ("Chevrolet"); and DOES 1 through 50 (collectively, "Defendants"), alleging causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2(b); and (4) Violation of Civil Code Section 1796.5.

On July 23, 2025, GM filed its Answer to the Complaint.

On September 19, 2025, Plaintiff voluntarily dismissed Chevrolet without prejudice.

On March 16, 2026, Plaintiff filed the instant Motion for Attorney's Fees and Costs. Any opposition would have been due on August 5, 2026. To date, no opposition has been filed.

Legal Standard

Attorneys'

fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc. § 1033.5, subd. (a)(10)(B).) In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).)

Civil

Code Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794.) Thus, the statute includes a "reasonable attorney's fees" standard.

The

attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Ibid.) A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In determining a

reasonable attorney fee, the trial court begins with the lodestar, i.e., the

number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

Analysis

Here, it is undisputed that Plaintiff is the prevailing party in this action, and therefore entitled to attorney's fees and costs pursuant to Civil Code Section 1794, subdivision (d). Plaintiff now moves for an award of attorney's fees and costs in the amount of \$17,102.92 consisting of: (1) \$16,187.50 in attorney's fees and (2) \$915.42 in costs. (Not. Mot. at ii:9-12.) The Notice of Motion made no mention of a lodestar enhancement award/multiplier as required by California Rules of Court, rule 3.1110, subdivision (a). Furthermore, the memorandum of points and authorities do not advance any arguments in support of an enhancement/lodestar multiplier. The Court notes, however, that the "Conclusion" section of the memorandum of points and authorities requests an enhancement of \$4,856.25. (Mot. at 15:5.) As such, the Court will address the request more thoroughly below.

A.

Reasonableness of Fees

i.

Reasonable

Hourly Rate

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in [her] court." (Ibid.)

Plaintiff seeks to recover attorneys' fees for two attorneys (Christopher Urner and Jorge L. Acosta) and one paralegal (Mary M. Zazueta) at the following rates: (1) Urner at an hourly rate of \$525.00/hour; (2) Acosta

at an hourly rate of \$450.00/hour; and (3) Zazueta at an hourly rate of \$250.00/hour. (Acosta Decl., ¶28, Ex. A.)

Acosta attest to the rates as follows. Acosta has been directly involved with Song-Beverly cases since 2018 as a paralegal, prior to becoming an attorney. (Acosta Decl., ¶2.) Acosta has also worked at Beatty & Myers LLP assisting with hundreds of Song-Beverly defense cases for three years before leaving to establish The Lemon Pros, LLP in 2021. (Id., ¶2-4.) Similarly, Urner has five years of direct litigation experience handling lemon law cases with the Altman Law group prior to joining The Lemon Pros, LLP. (Id., ¶9.) Likewise, Zazueta has worked in the consumer litigation field as a paralegal for approximately seven (7) years. (Id., ¶10.) Thus, the Court finds that each attorney has met their burden establishing that their hourly rates and the paralegal's hourly rate are reasonable based on their relative experience and the current market value.

ii.

Reasonable

Hourly Incurred

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.) A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections. (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101.)

Here, Plaintiff's legal team expended a total of 26.7 of attorney time and 14.2 of paralegal time, for a total of 40.9 hours litigating this present case. (Acosta Decl., ¶28, Ex. A.) A review of the billing invoices

demonstrates that Plaintiff's legal team expended time with prelitigation communications; drafting pleadings and motions including the present fee motion; reviewing analyzing service records, purchase documents, rental receipts; reviewing and analyzing initial disclosures; drafting deposition notice; drafting settlement documents; preparing for and attending mediation; and meet and confer efforts. As such, the Court finds that the time expended on litigating this case was reasonable and necessary.

B.

Multiplier/Enhancement

Relevant factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

"The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 351.) "Perhaps the most common multiplier applied, at least where a plaintiff prevails, is a modifier for the contingent nature of the representation." (*Id.*) The court may not consider the contingent nature of the representation in both setting the lodestar and applying a modifier. (*Id.*)

Another factor considered by a court in applying a multiplier is the "result obtained." "The 'results obtained' factor can properly be used to enhance a lodestar calculation where an exceptional effort produced an exceptional benefit." (*Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 582.) "The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (*Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 833.)

As mentioned above, Plaintiff requests a lodestar multiplier enhancement, however, the Court finds that a lodestar multiplier is not warranted here. Nothing before the Court indicates that the case presented novel issues or that the quality of representation far exceeded the quality of representation that would have been provided by attorneys of comparable skill and experience billing at the same rates. The contingent risks, skill, and Plaintiff's attorneys assert are absorbed by their hourly rates. (See Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 822.) Accordingly, the Court declines to award a lodestar multiplier of \$4,856.25.

C.

Costs

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute "may be allowed or denied in the court's discretion." (Id., subd. (c)(4).) The SBA allows a successful plaintiff to recover both "costs" and "expenses." (See Civ. Code, § 1794, subd. (d).)

" 'If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].' [Citation.]" (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Here, Plaintiff filed a memorandum of costs ("MOC") seeking:

(1) \$557.31 in filing and motion fees; (2) \$179.35 in jury fees; (3) \$93.76 in electronic filing fees; and (4) \$85.00 in other fees. The filing and motion fees; jury fees, and electronic filing fees are expressly allowable under Code of Civil Procedure Section 1033.5, subdivision (a), subsections (1)... By contrast, the MOC fails to specify what the \$85.00 in other fees are for in order for the Court to determine if it is proper under Code of Civil Procedure Section 1033.5, subdivision (a) or subdivision (c). The moving papers don't address this discrepancy either. Thus, the Court will award costs in the

reduced amount of \$830.42.

Conclusion

Based on the foregoing, Plaintiff Miguel Diaz's Motion for Attorney's Fees and Costs is GRANTED in the reduced amount of \$17,017.92.